

20. 9:00 AM CASE NUMBER: MSC22-00343

CASE NAME: JOEL ROBLES VS. GLOBAL SECURITY MANAGEMENT AGENCY INC A CALIFORNIA CORPORATION

*HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Joel Robles, individually, and on behalf of others similarly situated, filed a motion seeking final approval of the class action and PAGA Settlement against Defendant Global Security Management Agency, Inc. The Motion is granted provided Counsel complies with the proposed order herein. No appearance is required at the hearing on August 5, 2026.

Background

Salient Settlement Terms

The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiff Joel Robles against Defendant Global Security Management Agency, Inc. The Settlement Class consists of all current or former hourly-paid or non-exempt employees employed by Defendant in California during the Class Period of February 23, 2018 through October 23, 2023, encompassing 614 Class Members. The PAGA Period covers the same timeframe. Defendant has agreed to pay a Gross Settlement Amount of \$750,000.00 on a non-reversionary basis, to be paid in two equal installments of \$375,000.00 each. The first installment is due within fifteen days of the Effective Date or one year from August 24, 2023, whichever is later, and the second installment is due one year thereafter. Defendant shall pay its share of employer payroll taxes separately in addition to the Gross Settlement Amount.

The Gross Settlement Amount is allocated as follows: \$262,500.00 (thirty-five percent) to Class Counsel as attorneys' fees; \$10,766.13 to Class Counsel for reimbursement of litigation costs and expenses; \$10,000.00 to Plaintiff Joel Robles as an Enhancement Payment; \$13,716.00 to Simpluris, Inc. as Settlement Administration Costs; and \$115,000.00 for PAGA penalties. Of the PAGA Amount, seventy-five percent (\$86,250.00) shall be paid to the California Labor and Workforce Development Agency, and twenty-five percent (\$28,750.00) shall be distributed to PAGA Employees. The remaining Net Settlement Amount of approximately \$338,017.87 shall be distributed to Settlement Class Members who do not opt out.

Individual Settlement Payments shall be calculated on a pro rata basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Settlement Class Members to determine a Final Workweek Value, then multiply each Settlement Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on Pay Periods worked during the PAGA Period. Based on current estimates, the highest Individual Settlement Payment is approximately \$3,248.69 and the average is approximately \$550.52; the highest Individual PAGA Payment is approximately \$270.48 and the average is approximately \$46.82.

Individual Settlement Payments shall be allocated as twenty percent wages (reported on IRS Form W-2) and eighty percent interest, penalties, and non-wage damages (reported on IRS Form 1099). The

Settlement Administrator shall withhold employee taxes from the wage portion. Individual PAGA Payments shall be allocated as one hundred percent penalties (reported on IRS Form 1099). Defendant shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Amount. All payments shall be issued within five days following each deposit of the Gross Settlement Amount installments, and checks shall remain valid for one hundred eighty days from mailing.

The Court-approved Class Notice was mailed to all 614 Class Members on November 21, 2025, with a forty-five-day response deadline of January 5, 2026. The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks. As of the Response Deadline, the Settlement Administrator received zero written requests for exclusion and zero written objections. The Settlement is non-reversionary; no portion of the Gross Settlement Amount shall revert to Defendant. Any Individual Settlement Payment or Individual PAGA Payment checks not cashed within one hundred eighty days shall be canceled, and the associated funds shall be distributed to the California Controller's Unclaimed Property Fund. All Settlement Class Members and PAGA Employees shall be bound by the Settlement terms regardless of whether they negotiate their checks.

The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings. The Settlement is the product of arm's-length negotiations conducted through a full-day mediation with experienced mediator Brandon McKelvey, Esq., following extensive formal and informal discovery, investigation, and exchange of documents and data between the Parties.

Analysis of Attorneys' Fees and Lodestar Multiplier

Class Counsel seek attorneys' fees of \$262,500.00, representing thirty-five percent of the \$750,000.00 Gross Settlement Amount, which falls within the range of reasonableness for contingent fee awards in complex class actions. The lodestar cross-check analysis supports this request: Class Counsel collectively expended 267.90 hours (194.50 hours by Lawyers for Justice, PC and 73.4 hours by Sweeny Law, PC) at a blended hourly rate of \$850 per hour, yielding a base lodestar of \$227,715.00. Applying a modest multiplier of 1.15 produces an enhanced lodestar of \$262,500.00, which precisely matches the percentage-based fee request. The Court finds that this 1.15 multiplier is conservative compared to the multipliers ranging from 2 to 5 or higher that courts routinely approve in similar wage-and-hour class actions and appropriately accounts for the contingent nature of the representation, the risk of non-recovery, the complexity of the claims, and the substantial results achieved for the Class and the State of California.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that

apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Cost and fees

The Court finds the requested attorney's fees are reasonable and approved. See analysis above. Litigation costs of \$10,766.13 are reasonable and are approved. Administration costs of \$13,716.00 to Simpluris, Inc are reasonable and are approved.

The award of \$10,000 each to Plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that he spent over 20 hours on the case and understood the risks of and strategies involved in this litigation. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is granted.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

21. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

HEARING IN RE: NOTICE OF MTN AND MTN TO VACATE OR SET ASIDE THE JUDGMENT; DEC IN SUPPORT OF MTN

FILED BY: CHAN, STEVEN L.

TENTATIVE RULING:

Summary

On May 19, 2026, Defendants Steven Chan and Anne Wong Chan ("Defendants") filed a Motion to Vacate or Set Aside the Judgment entered in favor of Plaintiff Scott Jacoby ("Plaintiff") on April 23, 2026. The Court having reviewed the moving papers, opposition, and the file herein; and good cause appearing; the Court hereby **denies** Defendants' motion.

Background

On April 23, 2026, the Court entered a stipulated judgment on the record in favor of Plaintiff and against Defendants regarding possession of real property located at 2205 Koa Court, Antioch, California 94509. The judgment, entered by agreement of the parties, and confirmed by the Court pursuant to Cal. Code of Civ. Proc. § 664.6, contained the following material terms:

1. Possession: Defendants were permitted to remain in possession of the property through no later than February 28, 2027, conditioned upon strict compliance with the payment obligations set forth herein;
2. Monthly Payments: Defendants were ordered to pay Plaintiff \$1,200.00 per month, due on or before the 5th day of each month, commencing March 5, 2026, and continuing through February 28, 2027. Payments were to be deposited into Bank Account, opened by Plaintiff for the express purpose of accepting these payments;
3. Waiver of Rights: Defendants waived any right to further contest ownership or possession of the property, and waived any right to appeal or seek a stay of execution;
4. Conditional Masking: The judgment would remain masked and restricted from public view so long as Defendants remained in full compliance with the judgment's terms;
5. Vacatur Upon Compliance: Upon Defendants' full and faithful fulfillment of their obligations, Plaintiff would submit an ex parte application requesting the Court vacate the judgment and dismiss the action with prejudice;
6. Enforcement Upon Breach: If Defendants breached the judgment at any point before February 28, 2027, the case would be unmasked and a sheriff's lockout enforced forthwith;
7. Property Condition: Defendants agreed to vacate the property in "broom clean condition" and leave all fixtures in place, with the right to remove only the refrigerator, washer, and dryer upon vacating.

The Court questioned both Defendants on February 6, 2026. Defendant Anne Wong Chan was